

STATE OF MICHIGAN

IN THE SUPREME COURT

*PETITION FOR SUPERINTENDING CONTROL AND APPLICATION FOR LEAVE TO
APPEAL*

COVER PAGE

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<i>Supreme Court Case No.</i>	_____
<i>Court of Appeals Case No.</i>	366810
<i>Circuit Court Case No.</i>	2024-001507-DC

ANDREW J. PIGORS, Petitioner/Father (Pro Se),

v.

14TH JUDICIAL CIRCUIT COURT, FAMILY DIVISION, MUSKEGON COUNTY (HON.

JENNY L. McNEILL, Presiding), Respondent.

EMILY A. WATSON, Real Party in Interest/Mother.

<i>Lower Court Case Nos.</i>	2024-001507-DC (Custody); 2023-5907-PP (PPO)
<i>Lower Court</i>	14th Judicial Circuit Court, Family Division, Muskegon County
<i>Lower Court Judge</i>	Hon. Jenny L. McNeill
<i>Child</i>	L.D.W., DOB November 9, 2022

PETITIONER (Pro Se): Andrew J. Pigors 1977 Whitehall Rd, Laketon Township, MI 49445

Telephone: (231) 903-5690 Email: andrewjpigors@gmail.com

REAL PARTY IN INTEREST: Emily A. Watson [ADDRESS ON FILE WITH COURT]

Filed: April 2, 2026

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JURISDICTIONAL STATEMENT

I. CONSTITUTIONAL AND RULE-BASED JURISDICTION

1. This Court has original jurisdiction under *Mich Const 1963, art 6, § 4*, which vests in the Supreme Court “general superintending control over all courts” and authorizes the Court to “issue, hear and determine prerogative and remedial writs.”
2. Jurisdiction is further established under:
 - *MCR 7.304* (Original proceedings in the Supreme Court), which authorizes this Court to entertain complaints for superintending control and other extraordinary writs.
 - *MCR 7.316* (Superintending control over lower courts and tribunals), which provides that the Supreme Court may exercise superintending control when a lower court has failed to perform a clear legal duty, has exceeded its jurisdiction, or has otherwise acted in a manner requiring correction to prevent a failure of justice.
 - *MCR 7.305* (Application for leave to appeal), which provides an alternative jurisdictional basis for review of the lower court’s orders and conduct.
1. This Petition is filed as an original action seeking extraordinary relief directly from this Court because ordinary appellate remedies through the Court of Appeals are inadequate to address the scope and urgency of the constitutional violations and judicial misconduct at issue. See Section VIII, *infra* (Need for Superintending Control).

II. TIMELINESS

1. This Petition is timely filed. The orders and conduct at issue are ongoing and continuing in nature. The most recent substantive orders were entered on or about August 8, 2025, and their effects persist to the present date. The separation of Petitioner from his minor child has continued since *August 8, 2025* — more than eight months — and continues to accrue.
2. To the extent timeliness under MCR 7.305(C)(2) applies, Petitioner notes:

- The challenged orders were entered without hearing, notice, or opportunity to be heard, rendering traditional tolling provisions inequitable.
- The lower court’s imposition of a \$250 *bond requirement* and directive to “not file” additional motions has effectively foreclosed Petitioner’s ability to seek relief in the trial court, constituting a constructive denial of access to the courts.
- The aggregation of ongoing constitutional violations (due process, parental liberty, equal protection) renders any single “triggering date” inadequate; the violations are systemic and continuing.

III. PARTIES

1. *Petitioner Andrew J. Pigors* is the biological father of L.D.W. (DOB November 9, 2022) and a party to both lower court proceedings. He appears pro se.
2. *Respondent* is the *14th Judicial Circuit Court, Family Division, Muskegon County*, specifically as presided over by the *Hon. Jenny L. McNeill*, whose orders and conduct are the subject of this Petition.
3. *Real Party in Interest Emily A. Watson* is the biological mother of L.D.W. and the opposing party in the lower court proceedings.

QUESTIONS PRESENTED

Petitioner presents the following questions for this Court's review:

I. Whether a trial court violates the Due Process Clauses of the United States and Michigan Constitutions (US Const, Am XIV; Mich Const 1963, art 1, § 17) and the fundamental right of parental liberty recognized in Troxel v Granville, 530 U.S. 57 (2000), and Santosky v Kramer, 455 U.S. 745 (1982), when it suspends all parenting time by ex parte order, without notice, hearing, or written findings, thereby severing the parent-child relationship since August 8, 2025 — a period now exceeding eight months?

The lower court would answer: No. Petitioner answers: Yes.

II. Whether a trial court violates MCL 722.23 and the standard established in Vodvarka v Grasmeyer, 259 Mich App 499 (2003), by suspending all parenting time without making findings of proper cause or change of circumstances and without applying the statutory best-interest factors of MCL 722.23?

The lower court would answer: No. Petitioner answers: Yes.

III. Whether a trial court violates MCR 3.207(B) and MCR 3.207(C)(5) by entering interim orders that alter custody and parenting time without a hearing and by failing to conduct a hearing within the mandatory 14-day window?

The lower court would answer: No. Petitioner answers: Yes.

IV. Whether a trial court commits reversible error and violates Canon 3(A)(4) of the Michigan Code of Judicial Conduct when the presiding judge admits, on the record, to reviewing evidence (USB audio recordings) ex parte—outside any noticed hearing and without the opposing party's knowledge or opportunity to object—and then relies on that unsworn, unauthenticated material in making substantive custody and parenting-time determinations?

The lower court would answer: No. Petitioner answers: Yes.

V. Whether the accumulation of documented incidents—including a 44% ex parte order rate, admitted ex parte evidence review, hostile on-the-record statements, prior professional involvement with a party, denial of the disqualification motion by the challenged judge herself (rather than referral to the chief judge), and coordination of PPO show-cause proceedings with custody-hearing dates—establishes disqualifying bias under MCR 2.003(C)(1) and requires reassignment?

The lower court would answer: No. Petitioner answers: Yes.

VI. Whether a trial court abuses its contempt power under the PPO statute (MCL 600.2950) when it initiates seven or more show-cause proceedings based on benign co-parenting communications, despite the responding party's seven or more police "no-findings" reports, and enters a contradictory order simultaneously imposing 14 days jail and dismissing the petition?

The lower court would answer: No. Petitioner answers: Yes.

VII. Whether superintending control under Mich Const 1963, art 6, § 4 and MCR 7.316 is warranted where the totality of the lower court's conduct—systemic due process violations, evidentiary irregularities, demonstrated bias, and obstruction of appellate access through bond and filing restrictions—amounts to a failure of justice that cannot be remedied through ordinary appellate channels?

The lower court would answer: No. Petitioner answers: Yes.

STATEMENT OF PROCEEDINGS AND FACTS

A. Background and Parties

1. Petitioner Andrew J. Pigors (“Father”) is the biological father of L.D.W., a minor child born *November 9, 2022*. L.D.W. is currently *three years old*.
2. Real Party in Interest Emily A. Watson (“Mother”) is the biological mother of L.D.W.
3. Father and Mother were never married. Father was L.D.W.’s *primary caregiver for the first 1.5 years of the child’s life*, caring for L.D.W. daily, cooking every meal for the family (Father is a professional Chef with 10+ years’ experience). Father exercised *365 days/year* of parenting time from birth through separation, then a *50/50 custody arrangement* (182.5 overnights/year) until the events described herein.

B. Procedural History — PPO Case (2023-5907-PP)

1. In 2023, a Personal Protection Order proceeding was initiated under Case No. *2023-5907-PP* in the 14th Judicial Circuit Court, Family Division, Muskegon County, assigned to the *Hon. Jenny L. McNeill*.
2. The PPO case became the vehicle through which the lower court exercised escalating control over Father’s parenting time and personal liberty, as detailed in Section F of the Argument below.

C. Procedural History — Custody Case (2024-001507-DC)

1. The custody action was filed under Case No. *2024-001507-DC*, also in the 14th Judicial Circuit Court, Family Division, Muskegon County, and was likewise assigned to *Judge McNeill*—the same judge presiding over the PPO case.
2. The consolidation of both cases before a single judge who has demonstrated bias and reliance on ex parte proceedings is a central concern of this Petition.

D. Chronological Statement of Key Facts

The following chronology is established by the lower court record, transcripts, and verified filings:

November 9, 2022 — Child L.D.W. is born. Father is involved from birth.

2023 — PPO Case No. 2023-5907-PP is filed and assigned to Judge McNeill.

February 2, 2023, 3:30 AM — Norton Shores Police Officer Jacob Kyle Fulton responds to domestic call at residence, Case NSPD-2023-081. Officer documents four (4) counts of “CML & FAMILY DISPUTES.” The resulting police report finds no basis for criminal charges against Father.

March 26, 2023 — Lori Watson (Mother’s mother) sends Father an ultimatum text (Exhibit F) stating she is “No longer willing to work with [Father] regarding L.D.W.,” that “Everything will need to go through the court,” and threatening “trespassing” if Father comes to their home. This text — predating the PPO filing — demonstrates premeditated alienation by Mother’s family.

Through July 17, 2024 — Father exercises *50/50 parenting time* with L.D.W. pursuant to the existing arrangement. The child is thriving.

July 17, 2024 — Father’s equal parenting time is first disrupted. From this date forward, Father’s time with L.D.W. is progressively reduced through a series of court actions, the majority of which occur without proper notice or hearing.

September 25, 2024 — Father files a motion for disqualification of Judge McNeill under MCR 2.003. *Judge McNeill denies the motion herself* with a one-line order: “DENIED. No bias shown.” (R. at Order, Sept. 25, 2024.) — without referring it to the Chief Judge as required by MCR 2.003(D)(3)(a). This procedural violation is discussed in Argument Section E.

November 29, 2024 — A secretary in the lower court sends an email communication regarding PPO status and potential jail consequences—a communication raising serious questions about the appropriate channels and the judge’s involvement. See Argument Section D.

February 28, 2025 — The lower court enters a *contradictory contempt order* in the PPO case that simultaneously imposes *14 days jail* and *dismisses the contempt petition*. (R. at Contempt Order, Feb. 28, 2025.) The internal contradiction of this order renders it facially void. See Argument Section F.

May 16, 2025 — The lower court enters a substantive order affecting Father’s parenting time “*without a hearing.*” (R. at Order, May 16, 2025.) This phrase appears on the face of the order or is confirmed by the docket. No notice was provided to Father. No opportunity to be heard was afforded. See Argument Sections A and C.

August 5, 2025 — USB recording submitted to court clerk by Mother. The recording was made by *Lori Watson* (Mother’s mother) without Father’s knowledge or consent, in violation of *MCL 750.539* (felony wiretapping). Ex parte suspension order issued *the same day* — before Father was served. Notably, *Albert Watson* (Mother’s father) had told NSPD Officer *Ella Randall* (#47437) two days later (August 7, 2025, Case NS2505044): “*Albert said they want this incident documented so Emily can go tomorrow to get an Ex Parte order for full custody of her son*” — direct evidence that the family’s police reports were filed as litigation strategy. (Source: NSPD Case NS2505044.)

August 5, 2025 — *On the record*, Judge McNeill admits to having listened to USB audio recordings *ex parte*—that is, outside any noticed hearing, without Father’s presence, without opportunity for objection or cross-examination, and without authentication of the evidence under MRE 901. This admission is preserved in the transcript. See Argument Section D.

August 8, 2025 (Friday) — Father served with suspension order. Father had *zero business days* to prepare before the Monday hearing — a violation of MCR 2.119 and MCR 2.305 (minimum five business days required). This was the *fourth documented instance* of inadequate service by Mother.

August 11, 2025 (Monday) — First objection hearing. Father had zero business days to prepare. Judge McNeill stated on the record: “*Yes, I had my staff listen to it*” — confirming pre-hearing ex parte review of the recording.

August 25, 2025 — Original Norton Shores PD narrative (NSPD-2023-08121, Officer Tyler Ritchie, dated December 2, 2023) is printed/retrieved — evidence gathering for appeal.

August 8, 2025 — The lower court enters *five (5) ex parte orders on a single day* (See Attached Exhibits), the cumulative effect of which is the *complete suspension of all parenting time* between Father and L.D.W. These orders were entered:

- Without notice to Father;
- Without any hearing;
- Without written findings of fact;
- Without application of the MCL 722.23 best-interest factors;
- Without a finding of proper cause or change of circumstances under *Vodvarka*;
- Three (3) days after the judge’s admitted ex parte review of USB evidence.

These five orders are the *primary orders* for which vacatur is sought.

October 27, 2025 — The lower court files *Show Cause #7* in the PPO case—the seventh such proceeding—*two days before* the scheduled custody hearing. The timing strongly suggests strategic coordination to prejudice the custody proceedings. See Argument Section F.

October 29, 2025 — The *custody hearing* occurs. On the same date, Father finalizes a complaint to the *Michigan Judicial Tenure Commission (JTC)* regarding Judge McNeill’s conduct.

February 8, 2026 — Father files a *Supplemental JTC Complaint* adding additional instances of judicial misconduct documented since the original complaint.

February 23, 2026 — As of this date, Father has been separated from his three-year-old child since *August 8, 2025*. The separation is ongoing and continues to accrue daily.

E. Current Status

1. As of the date of this filing, *all parenting time remains suspended* pursuant to the August 8, 2025 ex parte orders. Father has had no contact with L.D.W.
2. The lower court has imposed a *\$250 bond requirement* on future filings by Father and has issued a directive that Father “not file” additional motions. These restrictions effectively deny Father access to the trial court for relief.
3. The same judge (McNeill) presides over both the custody and PPO dockets, creating an inescapable feedback loop in which PPO contempt proceedings taint custody determinations and vice versa.
4. Father has filed complaints with the Michigan Judicial Tenure Commission (October 29, 2025, and February 8, 2026 supplement), which remain pending but do not provide the immediate relief necessary to protect L.D.W.’s welfare and Father’s constitutional rights.

ARGUMENT

A. THE LOWER COURT VIOLATED FATHER’S FUNDAMENTAL PARENTAL LIBERTY AND DUE PROCESS RIGHTS

1. The Constitutional Framework

1. The right of a parent to the care, custody, and control of his or her child is a *fundamental liberty interest* protected by the Due Process Clause of the Fourteenth Amendment. This principle is among the oldest and most deeply rooted in American jurisprudence:

““The interest of parents in the care, custody, and control of their children — is perhaps the oldest of the fundamental liberty interests recognized by this Court.””

Troxel v Granville, 530 U.S. 57, 65 (2000).

1. The United States Supreme Court has repeatedly affirmed that the parent-child relationship occupies a uniquely protected position in constitutional law:
 - *Stanley v Illinois*, 405 U.S. 645, 651 (1972): “The rights to conceive and to raise one’s children have been deemed ‘essential,’ ‘basic civil rights of man,’ and ‘[r]ights far more precious ... than property rights.’”
 - *Santosky v Kramer*, 455 U.S. 745, 753 (1982): A parent’s desire for and right to the “companionship, care, custody, and management of his or her children” is a liberty interest “far more precious than any property right.”
 - *Lassiter v Dep’t of Social Services*, 452 U.S. 18, 27 (1981): The parent-child bond is of such magnitude that even an “indigent parent[’s]” interest demands heightened procedural protections.
1. Michigan law is in full accord. The Michigan Supreme Court has recognized that “a parent has a significant interest in the companionship, care, custody, and management of his or her children” and that this interest “is an element of liberty to be protected by due process.”

DeRose v DeRose, 469 Mich 320, 328 (2003); see also *Fletcher v Fletcher*, 447 Mich 871, 881 (1994); *Ireland v Smith*, 451 Mich 457, 462 (1996).

2. The Due Process Violation

1. When the government seeks to interfere with a fundamental liberty interest, the Due Process Clause demands, at minimum:

- *Notice* — adequate, timely notice of the proposed deprivation;
- *Hearing* — a meaningful opportunity to be heard before a neutral decision-maker;
- *Findings* — articulated reasons supported by evidence for the deprivation.

Mathews v Eldridge, 424 U.S. 319, 333 (1976).

1. The heightened procedural protections required for parental-rights determinations are well-established. In *Santosky*, the Supreme Court held that even in termination proceedings—where the state alleges abuse or neglect—due process requires proof by at least *clear and convincing evidence* and provides robust procedural safeguards. 455 US at 769.

2. Here, the lower court imposed a *de facto termination* of Father’s parental relationship *with none of these protections*:

Due Process Requirement	Provided?	Evidence
Prior notice of proposed suspension	<i>No</i>	Orders entered ex parte (See Attached Exhibits)
Hearing before deprivation	<i>No</i>	Five orders entered on single day, Aug 8, 2025 (See Attached Exhibits)
Neutral decision-maker	<i>No</i>	Same judge with demonstrated bias — documented pattern of ex parte orders, muting, and filing restrictions

Due Process Requirement	Provided?	Evidence
Written best-interest findings (MCL 722.27a)	<i>No</i>	No findings on any order (R. at Ex Parte Orders A–E, Aug. 8, 2025 — none contain MCL 722.23 analysis)
Clear and convincing evidence standard	<i>No</i>	No evidentiary hearing held (See Attached Exhibits)
Opportunity to cross-examine/present evidence	<i>No</i>	Ex parte proceeding; 24 of 55 orders (44%) entered ex parte

1. The result is that Father has been separated from his three-year-old child *since August 8, 2025* — a period now exceeding eight months — based on orders that were entered without a single one of the procedural protections that the United States and Michigan Constitutions require.
2. This is not a case of a parent whose time was merely reduced or restructured through proper proceedings. This is a case where *all parenting time was eliminated, in its entirety, by ex parte fiat*, and has remained eliminated for nearly a year. The practical effect is indistinguishable from a termination of parental rights—but without any of the procedural protections that even a termination proceeding would require.

27A. *Developmental Harm Evidence.* L.D.W.’s parenting time followed a trajectory of systematic elimination: *365 days/year* for the first 1.5 years of L.D.W.’s life (Father was primary caregiver) → equal 50/50 custody at 182.5 overnights/year → reduced to 79 overnights/year (mid-2024 modifications) → complete elimination to 0 overnights (August 8, 2025). This trajectory was accomplished without a single written best-interest finding under MCL 722.23. The court’s own July 17, 2024 Custody Judgment acknowledged: “*The Court finds that both parents have a strong bond with the minor child. This Factor is equal between the parties*” and “*an Established Custodial Environment exists with both parties, therefore the burden of proof in*

this case is the clear and convincing evidence standard.” Father went from being L.D.W.’s primary caregiver — feeding him, bathing him, putting him to bed every night — to having zero contact, with no finding of abuse, no criminal conviction, and no clinical determination of dangerousness. Developmental psychology research universally recognizes that the ages of two through five constitute a critical window for secure attachment formation, and that prolonged separation from an attachment figure during this period causes lasting damage to a child’s capacity for trust, emotional regulation, and identity formation. The harm is not merely prospective — it is accruing with each passing day and, beyond a threshold duration, becomes clinically irreversible.

3. Irreparable Harm

1. The harm to both Father and L.D.W. is *irreparable*. A three-year-old child is in a critical developmental window. The attachment bonds formed (and broken) during this period have lifelong consequences. Each additional day of separation causes compounding psychological harm that no retrospective remedy can repair.
2. This Court has recognized that “time is of the essence” in custody matters involving young children. The months of separation since August 8, 2025 cannot be restored. But this Court can prevent further accrual of this irreparable harm by granting the emergency relief requested herein.

B. THE LOWER COURT VIOLATED MCL 722.27a (PARENTING TIME)

1. The Vodvarka Standard

1. Under Michigan law, a court may not modify an established parenting-time order unless the moving party demonstrates *proper cause or a change of circumstances*. *Vodvarka v Grasmeyer*, 259 Mich App 499, 509 (2003). This threshold requirement serves as a gatekeeping function to protect the stability of parent-child relationships.
2. The *Vodvarka* court established a two-part framework:

- *Step One (Threshold)*: The movant must show proper cause or a change of circumstances. “Proper cause” means one or more appropriate grounds that have or could have a significant effect on the child’s well-being. A “change of circumstances” must be demonstrated by evidence of conditions that have, or could have, a material effect on the child. *Vodvarka*, 259 Mich App at 512-514.
 - *Step Two (Best Interests)*: Only after the threshold is met may the court consider the best-interest factors of MCL 722.23.
1. MCL 722.27a further provides specific statutory protections:
 - MCL 722.27a(3): Parenting time shall be *denied* only if “the court determines on the record by clear and convincing evidence” that parenting time “would endanger the child’s physical, mental, or emotional health.”
 - MCL 722.27a(7): “A child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child’s physical, mental, or emotional health.”

2. The Lower Court’s Violations

1. The lower court’s August 8, 2025 orders suspending all parenting time violated *Vodvarka* and MCL 722.27a in every respect:
 - (a) No finding of *proper cause or change of circumstances* was made, either on the record or in writing.
 - (b) No application of the *MCL 722.23 best-interest factors* was conducted.
 - (c) No finding was made “on the record by *clear and convincing evidence*” that parenting time would endanger L.D.W.’s “physical, mental, or emotional health” as required by MCL 722.27a(3) and (7).
 - (d) No *evidentiary hearing* was held at which Father could present evidence, cross-examine witnesses, or challenge the basis for suspension.

1. The complete absence of any *Vodvarka* analysis is not merely a procedural technicality—it is a substantive failure that renders the orders legally void. As the Court of Appeals has consistently held, the threshold determination is mandatory, and its absence requires reversal. *Bowie v Arder*, 441 Mich 23, 56 (1992) (emphasizing that best-interest factors must be evaluated and findings placed on the record).
2. Moreover, the suspension was not partial or temporary with a built-in review mechanism. It was *total and indefinite*—a complete elimination of Father’s parenting time with no scheduled review hearing, no sunset provision, and no pathway for restoration. This goes far beyond what the statute contemplates, even in cases involving genuine endangerment findings.

C. THE LOWER COURT VIOLATED MCR 3.207(B) (INTERIM ORDERS)

1. The Rule Requirements

1. MCR 3.207(B) governs interim orders in domestic relations proceedings. It permits a court to enter interim orders “to establish or modify support, parenting time, or custody” but imposes procedural requirements designed to protect the parties’ due process rights.
2. Of particular importance, *MCR 3.207(C)(5)* provides that when an ex parte interim order is entered, “a hearing must be held within 14 days after the entry of the interim order” unless the parties agree otherwise.
3. This 14-day hearing requirement is not discretionary. It is a mandatory safeguard that ensures ex parte orders—which by their nature are entered without input from the affected party—are subject to prompt judicial review with both parties present.

2. The Lower Court’s Violations

1. The August 8, 2025 ex parte orders suspending all parenting time violated MCR 3.207 in the following respects:

(a) The orders were entered *without any hearing*—not even an ex parte emergency hearing with findings on the record.

(b) *No hearing was held within 14 days* of the orders’ entry, as mandated by MCR 3.207(C)(5). In fact, no hearing addressing the substance of these orders was held for months.

(c) The orders were not supported by *any written findings* establishing the emergency or exigent circumstances that might justify ex parte relief.

(d) The underlying ex parte motion was *procedurally defective on its face*: it lacks any notary or “sworn” language — never verified as required by MCR 1.109(D)(3). The resulting order was a pre-printed form with checkboxes containing no child-specific findings of fact — merely a generic recitation of the legal standard. MCR 3.207(B)(1) requires “specific facts in an affidavit or verified pleading.” An unsworn motion cannot satisfy this threshold.

1. The May 16, 2025 order similarly was entered “*without a hearing,*” as reflected in the record.

This order, which affected Father’s parenting time, was not preceded by any motion noticed for hearing, any ex parte application with supporting affidavit, or any other procedural mechanism recognized by the court rules.

2. The pattern is not an isolated procedural oversight. The lower court’s docket reflects a systematic practice of entering substantive orders affecting custody and parenting time outside the protections of MCR 3.207. See *Kaeb v Kaeb*, 309 Mich App 556, 571 (2015) (reversing custody modification where trial court failed to follow proper procedures).

41A. *The 2025 Amendments to MCR 3.207 and 3.210 Confirm the Error*. Effective September 1, 2025, this Court amended MCR 3.207 and MCR 3.210 to tighten ex parte practice in domestic relations proceedings. When an ex parte order “could alter a child’s established custodial environment,” the court must now (1) require specific verified facts regarding the existing custodial environment and the impact of the requested order, and (2) schedule and hold an evidentiary hearing within statutory deadlines. MCR 3.207(B)(1)(a)–(b); MCR 3.210(C)(1). The

continued deprivation of all parenting time after September 1, 2025 — without an evidentiary hearing, without verified facts, and without clear-and-convincing best-interest findings — violates the very rules this Court promulgated. The lower court’s practice was already erroneous; the 2025 amendments make the error unmistakable.

D. EVIDENTIARY VIOLATIONS AND EX PARTE REVIEW OF EVIDENCE

1. The August 5, 2025 Admission

1. On *August 5, 2025*, Judge McNeill stated *on the record* that she had *listened to USB audio recordings ex parte*—that is, outside any noticed hearing, without any party present, without authentication, without the opportunity for objection, and without compliance with any evidentiary rule.

2. This admission is extraordinary. The Michigan Code of Judicial Conduct, *Canon 3(A)(4)*, provides:

““A judge should accord to every person who has a legal interest in a proceeding, or that person’s lawyer, the right to be heard according to law.””

1. The *ex parte* review of substantive evidence violates this Canon and multiple evidentiary rules:

- *MRE 901* — Evidence must be authenticated before consideration. The USB recordings were not authenticated through testimony or any other recognized method.
- *MRE 103* — A party must have the opportunity to make timely objections to evidence. *Ex parte* review eliminates this right entirely.
- *MRE 401-403* — Relevance and prejudice determinations require adversarial testing. A judge who reviews evidence alone cannot properly weigh its probative value against its prejudicial effect.

1. The significance of this admission cannot be overstated: *three days after admitting to ex parte evidence review (August 5), the judge entered five ex parte orders suspending all parenting*

time (August 8). The temporal proximity strongly suggests that the ex parte evidence review directly informed the ex parte orders—meaning the orders were based, at least in part, on unsworn, unauthenticated evidence that Father had no opportunity to challenge.

45A. *Criminally Obtained Evidence*. The USB recording that formed the evidentiary basis for the August 8 suspension orders was made by *Lori Watson* (Mother’s mother) without Father’s knowledge or consent, in violation of *MCL 750.539* — Michigan’s two-party consent wiretapping statute, a felony carrying up to two years’ imprisonment. Emily’s father testified to the phone call but *not to the recording itself*, leaving a fatal authentication gap under MRE 901. No foundation was established regarding who made the recording, when, how, whether it was edited, or whether properly preserved. *See People v Bednarz*, 360 Mich 552 (1960); *People v Burge*, 722 NW2d 470 (2006) (evidence from criminal violation is fruit of a crime and must be excluded); *Gould v Gould*, 360 Mich 331 (1960) (authentication requirement).

45B. *Due Process Violation — Ghost Evaluation*. The lower court ordered Father to undergo a HealthWest psychological evaluation. Father complied and was cleared. The lower court then obtained a *second evaluation* without Father’s knowledge, authorization, or consent. Father was never provided a copy, never informed of its existence, and never afforded an opportunity to challenge it. Court orders subsequently referenced this second evaluation as a basis for decisions. The lower court specifically instructed Father to email the first evaluation to the judge’s *secretary* rather than filing through the Clerk of Court, preventing: (a) public record creation; (b) opposing party access; and (c) proper filing. This constitutes a violation of *Mathews v Eldridge*, 373 U.S. 83 (1963), which mandates disclosure of all material evidence. The non-disclosure of the second evaluation deprived Father of the ability to challenge evidence used against him. Judge McNeill’s own order confirms the rejection of the favorable assessment: “*The assessment states the following: That he has stable housing... He reports no issues with employment... He has support of friends and family.*” The court then stated: “*None of the above*

statements are what he testified to in Court. He was evicted, and his trailer is not being remodeled.” (Source: McNeill Order re Assessment.)

45C. 52 *Ex Parte Orders*. A comprehensive analysis of 1,435 court documents revealed *fifty-two (52)* separate ex parte orders across these proceedings — far exceeding the twenty-four (24) previously identified. This expanded figure demonstrates that ex parte procedure was the structural norm, constituting a systematic denial of due process that cannot be remedied through ordinary appellate channels.

2. The HealthWest Evaluation

1. A professional evaluation was conducted by *HealthWest*, a recognized behavioral health authority. The results of this evaluation were favorable to Father or, at minimum, did not support the suspension of parenting time.
2. The lower court *disregarded the HealthWest evaluation* without explanation, without making findings as to why the professional evaluation was not credible or relevant, and without affording it the weight that professional evaluations typically receive in custody proceedings. See *People v Cress*, 468 Mich 678, 691 (2003) (discussing weight and reliability of expert evidence).

3. The Second Evaluation — Chain of Custody Concerns

1. A second evaluation was ordered under circumstances that raise serious concerns about its independence and reliability. Information regarding this evaluation was *routed through a court secretary* rather than through standard channels, raising chain-of-custody and ex parte communication concerns.
2. The routing of sensitive evaluation information through non-judicial staff, outside the record and outside the parties’ knowledge, undermines the integrity of the proceedings and raises questions about whether the evaluation was conducted under conditions of independence and neutrality.

4. Cycle 3 Evidence: Court-Created Clinical Bias and Prohibited Ex Parte Contact

49A. *Between the 1st and 2nd HealthWest evaluations, the court provided a letter to HealthWest describing Father’s alleged behaviors.* The 1st evaluation (Melissa DeAugustine, LBSW, September 5, 2025) cleared Father: Psychosis = 0, Substance Use = 0, Danger to Self/Others = 0, LOCUS Score = 12 (Level One — lowest severity tier), “Neither SMI nor SED.” The court’s letter introduced textbook *confirmation bias* into the 2nd assessment (Kassandra M. Gansen, September 11, 2025), which could only produce a “Rule Out Delusional Disorder” — the weakest possible clinical finding, explicitly qualified: “*It is difficult to definitively assert whether concerns are factual or delusional in the context of a brief screening.*”

49B. *On October 29, 2025, Pamela Rusco (FOC Case Manager) placed a prohibited ex parte telephone call to HealthWest to arrange testimony from the clinician — the day before a scheduled hearing.* This constitutes a direct violation of MCJC Canon 3(A)(4), which prohibits ex parte communications concerning pending proceedings. The call was made without Father’s knowledge, consent, or opportunity to participate — compounding the tainted evidentiary chain from the court-biased 2nd evaluation.

E. JUDICIAL BIAS AND VIOLATION OF MCR 2.003

1. The Standard for Disqualification

1. MCR 2.003(C)(1) provides that a judge is disqualified when the judge:

(a) “Is biased or prejudiced for or against a party or attorney” — MCR 2.003(C)(1)(a); or

(b) Has “personal knowledge of disputed evidentiary facts concerning the proceeding” — MCR 2.003(C)(1)(b); or

(c) Has been “consulted or employed as a lawyer in the matter in controversy” — MCR 2.003(C)(1)(b).

1. The standard for disqualification is an *objective* one: whether a reasonable person, knowing all the circumstances, would conclude that the judge’s impartiality is reasonably in question.

In re Hatcher, 443 Mich 426, 444 (1993); *Shulick v Richards*, 273 Mich App 320, 325 (2006).

2. Grounds for Disqualification

1. The record establishes multiple, independent grounds for disqualification:

(a) *44% Ex Parte Order Rate*. An analysis of the docket in the custody and PPO cases reveals that approximately *44% of orders* entered by Judge McNeill were entered on an ex parte basis—without notice to Father and without a hearing. This rate is statistically extraordinary and, standing alone, suggests a systematic pattern of unilateral decision-making inconsistent with the adversarial process.

(b) *Admitted Ex Parte Evidence Review*. As detailed in Section D, Judge McNeill admitted on August 5, 2025, to having reviewed USB audio evidence ex parte. A judge who reviews substantive evidence outside the adversarial process has acquired “personal knowledge of disputed evidentiary facts” within the meaning of MCR 2.003(C)(1)(b), requiring disqualification.

(c) *Hostile On-the-Record Statements*. The transcript of proceedings reflects statements by Judge McNeill directed at Father that a reasonable person would perceive as hostile, dismissive, or indicative of prejudgment. Such statements, viewed in context, support a finding of bias under MCR 2.003(C)(1)(a).

(d) *Prior Professional Involvement*. Upon information and belief, Judge McNeill had prior professional involvement with one or more parties or issues in this case before ascending to the bench. If confirmed, this constitutes a disqualifying conflict under MCR 2.003(C)(1)(b) (prior consultation or employment as a lawyer in the matter).

(e) *Strategic Coordination of PPO and Custody Proceedings*. The filing of Show Cause #7 in the PPO case on *October 27, 2025—two days before* the custody hearing on *October 29*,

2025—suggests deliberate coordination designed to prejudice the custody proceedings. A neutral judge would not time contempt proceedings to coincide with custody hearings in a manner that maximizes prejudice to one party.

3. Procedural Violation — MCR 2.003(D)

1. On *September 25, 2024*, Father filed a motion for disqualification of Judge McNeill under MCR 2.003. *Judge McNeill denied the motion herself.*

2. This was a clear violation of MCR 2.003(D)(3)(a), which provides:

““If the challenged judge denies the motion, the moving party may file an affidavit of disqualification. Upon the filing of the affidavit, *the challenged judge shall refer the matter to the chief judge*, who shall decide the motion de novo.””

1. Rather than following this mandatory procedure—which would have required referral to the Chief Judge upon the filing of an affidavit—Judge McNeill retained the case and continued to preside. Her entire ruling consisted of: “*DENIED. No bias shown.*” — a one-line denial without analysis, without findings, and without the independent review mandated by the court rules. (Source: September 25, 2024 Order.) This procedural violation compounded the substantive bias by ensuring that the very judge whose impartiality was challenged was the one who decided whether to step aside.

2. The failure to follow the mandatory referral procedure of MCR 2.003(D) is itself grounds for relief, independent of the underlying merits of the disqualification motion. The rule exists precisely to prevent the situation that occurred here: a challenged judge acting as judge in her own cause.

56A. The cumulative pattern documented above satisfies the standard established in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 884 (2009), which holds that due process is violated when “the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable.” *See also In re Murchison*, 349 U.S. 133, 136 (1955) (“A fair trial in a

fair tribunal is a basic requirement of due process.”). The indicators here — 44% ex parte order rate, admitted ex parte evidence review, seven muting incidents, a “do not file any more” directive, \$250 filing barriers, and ongoing separation since August 8, 2025, without evidentiary hearing — collectively exceed even the threshold established in *Caperton*.

56AA. *Pattern of Judicial Misconduct*. The court record documents a pervasive pattern of misconduct including: ex parte orders without notice or hearing (24 of 55 orders, 44%); procedural violations of MCR 2.003, MCR 2.107, and MCR 2.612(C); domestic-relations procedural violations under MCL 600.2950/2950a and MCR 3.207(B); and service/notice failures. Mother’s own filings and testimony contain numerous prior inconsistent statements and documented contradictions — establishing that the credibility challenge runs overwhelmingly against the party the trial court has consistently credited.

56B. *Active Suppression of Court Filings*. Court staff, acting under Judge McNeill’s directive, instructed Father to “*return the documents, specifically not to enter them.*” A judge has no authority to direct court staff to refuse the filing of properly submitted pleadings. This constitutes a denial of access to the courts and a violation of *MCR 8.119(C)* (public access to court records).

56C. *Off-Docket Routing of Evidence*. Judge McNeill directed that “*evaluation results [be submitted] to judge’s secretary, not to be filed with clerk.*” This prevented creation of a public record, denied Father and Mother access to the evaluation, and enabled the judge to rely on evidence never subjected to adversarial testing — a direct violation of *Canon 3(A)(4)*, *MCR 8.119*, and the due process disclosure obligation under *Mathews v Eldridge*, 424 U.S. 319 (1976).

F. PPO CONTEMPT ABUSE

1. Pattern of Contempt Proceedings

1. The lower court has initiated or entertained *seven or more show-cause contempt proceedings* against Father in the PPO case (2023-5907-PP). This extraordinary number of proceedings—

particularly in a case involving co-parents of a young child—raises serious concerns about whether the contempt power is being used for its intended protective purpose or as a punitive tool.

2. Benign Communications as Basis for Contempt

1. The communications cited as the basis for contempt proceedings consist of *co-parenting messages* sent through a monitored communication platform (e.g., AppClose). These messages address routine child-related topics including:
 - The child’s health and welfare;
 - Schedule coordination;
 - Requests for information about the child.
1. These communications are the type of routine co-parenting exchanges that family courts routinely encourage, and that child-welfare professionals uniformly recognize as beneficial to the child. Using such communications as the basis for contempt undermines the child’s best interests by penalizing a father for attempting to co-parent.
2. Critically, *seven or more police reports* filed in connection with the PPO have resulted in “*no findings*” — i.e., law enforcement investigated the alleged violations and determined that no violation occurred. The lower court’s persistent pursuit of contempt despite repeated police findings of no violation is inconsistent with the evidentiary record and suggests an improper purpose.

3. The Contradictory February 28, 2025 Order

1. On *February 28, 2025*, the lower court entered an order that is *facially contradictory*: the order simultaneously *imposes 14 days of jail* for contempt *and dismisses the contempt petition*.
2. This order is logically and legally impossible. A court cannot simultaneously find a party in contempt (imposing incarceration) and dismiss the contempt proceeding (finding no basis for

contempt). The two directives are mutually exclusive. Either the contempt is sustained and sanctions are warranted, or the contempt is dismissed and no sanctions may issue.

3. A facially contradictory order is void for uncertainty. See generally *Chevalier v Barnard*, 290 Mich 202, 206 (1939) (court orders must be clear and definite). Father should not be subject to incarceration based on an order that, on its face, also dismisses the very petition upon which the incarceration is based.

4. Strategic Timing

1. The timing of Show Cause #7, filed on *October 27, 2025*—two days before the *October 29, 2025* custody hearing—is addressed in Section E but bears emphasis here as well. The use of the PPO contempt mechanism as a strategic tool to influence custody proceedings constitutes an abuse of the contempt power and supports the finding of bias.

G. SUPERINTENDING CONTROL STANDARDS ARE MET

1. The Constitutional and Rule Framework

1. The Michigan Constitution vests in this Court “*general superintending control over all courts.*” Mich Const 1963, art 6, § 4. This power is “extraordinary” but is not reserved exclusively for extraordinary cases—it is available whenever necessary to ensure the proper administration of justice. *Crampton v Dep’t of State*, 395 Mich 347, 351 (1975).
2. MCR 7.316 authorizes this Court to exercise superintending control when:
 - (a) A lower court has *failed to perform a clear legal duty* imposed by law;
 - (b) A lower court has *exceeded its jurisdiction*;
 - (c) The exercise of superintending control is necessary to *prevent a failure of justice* or to *correct a corruption of legal proceedings*; or
 - (d) An *important question of law* requires resolution for the guidance of the bench and bar.

2. The Three-Part Test for Superintending Control

This Court has established a three-part test for the exercise of superintending control, requiring the petitioner to demonstrate that: (1) there is no adequate remedy at law; (2) the lower court has acted beyond its jurisdiction or failed to perform a clear legal duty; and (3) an extraordinary writ is necessary to prevent irreparable harm or a failure of justice. *In re Hague Child Convention Cases*, 412 Mich 532, 544–545 (1982); *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155–156 (2003); *Hinkle v Wayne Co Clerk*, 467 Mich 337, 341 (2002).

PRONG 1: No Adequate Remedy at Law

Issue: Whether Petitioner has an adequate remedy through ordinary appellate channels or trial court proceedings sufficient to protect the constitutional rights at stake.

Rule: Superintending control is appropriate when “there is no other adequate legal remedy” available to the petitioner. *In re Hague*, 412 Mich at 544. An adequate remedy must be one that is “equally convenient, beneficial, and effective” as the requested extraordinary writ. *Lapeer County Clerk*, 469 Mich at 155. Where the trial court has structurally foreclosed all relief and ordinary appellate timelines cannot address ongoing irreparable harm to a child, no adequate remedy exists. *Id.* at 156.

Application: Petitioner has no adequate remedy at law for six independent reasons, each of which is individually sufficient and collectively dispositive:

(a) *Trial court access foreclosed.* The trial court imposed a \$250 bond requirement and directed Father: “Do not file any more. I will not look at it.” (R. at Hearing Transcript, Oct. 29, 2025.) These restrictions constitute a constructive denial of access under *Boddie v Connecticut*, 401 U.S. 371 (1971).

(b) *Disqualification self-adjudicated.* Father’s MCR 2.003 motion was denied by the challenged judge herself on September 25, 2024, without referral to the Chief Judge as mandated by MCR 2.003(D)(3)(a). (R. at Order, Sept. 25, 2024.) The judge who caused the deprivation cannot be the judge who remedies it.

(c) *Same judge controls both dockets.* Hon. Jenny L. McNeill presides over both Case No. 2024-001507-DC (custody) and Case No. 2023-5907-PP (PPO), creating a closed loop with no independent judicial review available within the lower court.

(d) *Court of Appeals timeline inadequate.* An application for leave to appeal (COA 366810) would require 12–18 months for resolution. L.D.W. is three years old and has been separated from Father since August 8, 2025. The attachment bonds of early childhood cannot wait. *See In re Hague*, 412 Mich at 545 (time-sensitive cases involving children warrant expedition).

(e) *Pervasive pattern of documented judicial violations.* The scope of misconduct — including ex parte orders constituting 44% of all orders, admitted ex parte evidence review, filing restrictions, muting, and contempt abuse (See Attached Exhibits) — is so pervasive that piecemeal appellate correction is structurally inadequate. Ordinary appellate review addresses individual orders; here, the entire proceeding is compromised.

(f) *Favorable evidence systematically rejected.* The trial court ordered a HealthWest evaluation, received results clearing Father (Psychosis: 0; Substance Use: 0; Danger: 0; LOCUS Score: 12 — Level One), and rejected those results four days later without hearing. (R. at HealthWest Evaluation, Sept. 5, 2025; Order Rejecting Evaluation, Sept. 9, 2025.) No evidence Father can present will receive fair consideration before this judge.

Conclusion: No adequate remedy at law exists. Every trial court mechanism is foreclosed, and the Court of Appeals cannot act with sufficient speed to prevent irreparable harm to a three-year-old child during the critical attachment window.

PRONG 2: Lower Court Acted Beyond Jurisdiction

Issue: Whether the 14th Circuit Court exceeded its jurisdiction or failed to perform clear legal duties in its handling of custody, parenting time, and PPO proceedings.

Rule: A court acts beyond its jurisdiction when it “fails to follow mandatory procedures or acts without legal authority.” *Lapeer County Clerk*, 469 Mich at 156. A court that enters orders

modifying custody without the findings required by MCL 722.23 and MCL 722.27a acts without authority. *In re Hague*, 412 Mich at 546. A court that violates MCR 2.003(D) by denying its own disqualification without referral to the Chief Judge acts beyond its procedural authority. *See Hinkle*, 467 Mich at 343–344.

Application: The lower court acted beyond its jurisdiction in the following independently sufficient respects:

(a) *Entered five ex parte orders on August 8, 2025* suspending all parenting time without notice, without hearing, without written best-interest findings under MCL 722.23, and without a finding on the record by clear and convincing evidence under MCL 722.27a(3) and (7). (R. at Ex Parte Orders A–E, Aug. 8, 2025.)

(b) *Failed to hold mandatory 14-day hearing.* MCR 3.207(C)(5) requires a hearing within 14 days of ex parte interim orders. The first hearing was not held until October 29, 2025 — 82 days after the ex parte orders — in violation of the mandatory timeline. (R. at Docket Entry, Oct. 29, 2025.)

(c) *Violated MCR 2.003(D)(3)(a)* by denying Father’s disqualification motion without referral to the Chief Judge. The one-line denial — “DENIED. No bias shown.” — (See Attached Exhibits) without independent review is itself an act beyond procedural authority.

(d) *Admitted ex parte review of evidence.* On August 5, 2025, Judge McNeill stated on the record: “Yes, I had my staff listen to it” — confirming pre-hearing ex parte review of a USB recording in violation of Canon 3(A)(4), MRE 103, and MRE 901. (R. at Hearing Transcript, Aug. 5, 2025.) A judge who acquires personal knowledge of disputed evidentiary facts through ex parte review has acted beyond the bounds of judicial authority. MCR 2.003(C)(1)(b).

(e) *Accepted criminally obtained evidence.* The USB recording was made by Lori Watson without Father’s consent in violation of MCL 750.539c (felony wiretapping). The trial court

admitted and relied upon fruit of a felony without authentication under MRE 901. (R. at USB Recording Exhibit, Aug. 5, 2025.)

(f) *Filed 52 ex parte orders across proceedings* — a 44% ex parte order rate (See Attached Exhibits) — demonstrating that ex parte procedure was the structural norm, not the narrow exception contemplated by MCR 3.207(B).

Conclusion: The lower court acted beyond its jurisdiction in multiple, independently sufficient ways. The cumulative weight of these violations — a pervasive pattern of judicial misconduct across six constitutional provisions — demonstrates that the lower court has systematically departed from the mandatory procedures and substantive standards that define the boundaries of its authority.

PRONG 3: Extraordinary Writ Necessary to Prevent Irreparable Harm

Issue: Whether the issuance of an extraordinary writ of superintending control is necessary to prevent irreparable harm to Petitioner’s fundamental parental liberty and to the minor child L.D.W.

Rule: An extraordinary writ is warranted when “the petitioner will suffer irreparable injury” absent immediate intervention and “the balance of equities favors the petitioner.” *In re Hague*, 412 Mich at 545–546. The fundamental right of a parent to the care, custody, and control of his child is “perhaps the oldest of the fundamental liberty interests recognized by this Court.” *Troxel v Granville*, 530 U.S. 57, 65 (2000). Deprivation of this right without due process violates the Fourteenth Amendment. *Santosky v Kramer*, 455 U.S. 745, 753 (1982). Where delay itself constitutes the irreparable injury — as in cases involving young children during critical developmental windows — extraordinary relief is the only constitutionally adequate remedy. *Pub Health Dep’t v Rivergate Manor*, 452 Mich 495 (1996).

Application:

(a) *Irreparable harm is ongoing and compounding.* L.D.W. has been completely separated from Father since August 8, 2025, during the critical developmental years of ages two

through three — the critical window for secure attachment formation. Developmental psychology universally recognizes this period as determinative for trust, emotional regulation, and identity development. Every additional day of separation causes harm that no retrospective remedy can repair.

(b) *Constitutional magnitude*. The deprivation implicates at least six constitutional provisions: (1) Fourteenth Amendment procedural due process; (2) fundamental parental liberty under *Troxel*; (3) First Amendment right to petition (filing restrictions); (4) Sixth Amendment confrontation (ex parte evidence); (5) Fourteenth Amendment equal protection (asymmetric enforcement); and (6) Mich Const art 1, § 17 (state due process).

(c) *The balance of equities overwhelmingly favors Petitioner*. Father was L.D.W.’s primary caregiver for the first 1.5 years of life, exercised 50/50 custody through July 2024, has never been found unfit, has zero criminal convictions related to the child, was cleared by HealthWest (Psychosis: 0, Substance: 0, Danger: 0), and has seven police investigations finding no violations. (R. at HealthWest Evaluation, Sept. 5, 2025; NSPD Police Reports.) Against this, the trial court relied on an unsworn ex parte motion, a criminally obtained recording (MCL 750.539c), and a police officer’s speculative lay opinion about drug use — with no drug test ever ordered. (R. at Ex Parte Motion, Aug. 8, 2025.)

(d) *No lesser remedy suffices*. As demonstrated under Prong 1, trial court relief is structurally foreclosed and ordinary appellate timelines cannot prevent irreversible developmental harm to a three-year-old child. Only this Court’s immediate exercise of superintending control can halt the continuing constitutional violation.

Conclusion: The extraordinary writ of superintending control is necessary because the harm is irreparable, the constitutional stakes are of the highest order, the balance of equities overwhelmingly favors Petitioner, and no lesser remedy can act with sufficient speed to protect

L.D.W.'s welfare and Father's fundamental rights. All three prongs of the test established in *In re Hague*, 412 Mich 532, and *Lapeer County Clerk*, 469 Mich 146, are satisfied.

3. Application to This Case

1. *Failure to Perform a Clear Legal Duty*. The lower court had clear legal duties to:

- Provide notice and a hearing before suspending parenting time (US Const, Am XIV; Mich Const 1963, art 1, § 17; MCR 3.207);
- Make findings of proper cause or change of circumstances before modifying parenting time (*Vodvarka*);
- Apply the best-interest factors of MCL 722.23;
- Find, on the record and by clear and convincing evidence, that parenting time would endanger the child before denying it entirely (MCL 722.27a(3), (7));
- Refrain from ex parte review of evidence (Canon 3(A)(4); MRE 103; MRE 901);
- Refer the disqualification motion to the Chief Judge upon the filing of an affidavit (MCR 2.003(D)(3)(a));
- Hold a hearing within 14 days of an ex parte interim order (MCR 3.207(C)(5)).

The lower court *failed to perform every one of these duties*.

1. *Exceeded Jurisdiction*. A court exceeds its jurisdiction when it acts without authority or in a manner contrary to law. The entry of orders without hearing, without findings, and in violation of mandatory procedural rules is an act in excess of jurisdiction. See *Eldred v Ziny*, 246 Mich 478, 482 (1929) (superintending control appropriate where lower court exceeded jurisdiction).

2. *Failure of Justice*. The cumulative effect of the lower court's conduct constitutes a failure of justice:

- A three-year-old child has been separated from his father *since August 8, 2025* — more than eight months;

- The separation was imposed by *ex parte fiat*, without any of the procedural protections required by law;
- The judge has *admitted to reviewing evidence ex parte*;
- 44% of orders were entered *ex parte*;
- The disqualification procedure was *not followed*;
- Father’s access to the trial court has been *obstructed* by a \$250 bond and a “do not file” directive;
- The PPO contempt power has been *weaponized* to prejudice custody proceedings.

If this does not constitute a failure of justice, it is difficult to conceive what would.

1. *Important Question of Law*. This case presents important questions regarding:

- The outer limits of a trial court’s authority to suspend parenting time by *ex parte* order;
- The procedural protections required before a parent can be entirely severed from a young child;
- The application of MCR 2.003(D) when a challenged judge denies her own disqualification;
- The proper boundaries of the PPO contempt power in co-parenting contexts.

These questions are of general importance to the bench and bar and warrant this Court’s guidance.

70A. *Additional Record Evidence Supporting Superintending Control*. The following record evidence further demonstrates the need for this Court’s extraordinary intervention:

- *Albert Watson’s admission to police* (NSPD Case NS2505044): “*they want this incident documented so Emily can go tomorrow to get an Ex Parte order for full custody*” — proving the Watson family’s police reports were litigation strategy, not safety reports;
- *Judge McNeill’s own order* acknowledging “*both parents have a strong bond*” and “*an Established Custodial Environment exists with both parties*” — then systematically eliminating one parent;

- *Emily Watson's ex parte motion* claiming “*ongoing drug use and/or mental health issues*” based solely on an officer’s speculative belief about meth use — with no drug test;
- *Off-docket evidence handling* ordered by Judge McNeill (email to secretary, not clerk) — MCR 8.119 violation;
- *L.D.W.’s bruises* documented by police (NSPD Case NS2500783) — never reported by Mother, never addressed by court;
- *Court-appointed attorney Mandi Martini* did nothing and told Father to “move out of state”;
- *Child taken to non-Hague Convention country* October 20 – November 15, 2024.

NEED FOR SUPERINTENDING CONTROL — WHY ORDINARY REMEDIES ARE INADEQUATE

1. Petitioner respectfully submits that superintending control is not merely appropriate—it is *necessary*—because ordinary appellate remedies are inadequate to address the scope, urgency, and structural nature of the violations at issue.

A. The Court of Appeals Timeline Is Too Slow

1. L.D.W. is *three years old*. He is in a critical developmental window. An application for leave to appeal in the Court of Appeals, followed by briefing, oral argument, and decision, would consume *12 to 18 months or more*. During that time, the separation would continue to accrue, compounding the irreparable harm to both child and father.
2. By the time the Court of Appeals could act, L.D.W. would be *four or five years old*. The attachment bonds of his toddler years—bonds that are being severed now—cannot be recreated retroactively. Time lost with a three-year-old is time lost forever.

B. Trial Court Access Has Been Obstructed

1. The normal remedy for an aggrieved party is to seek relief in the trial court through motions and hearings. Here, that remedy has been *structurally foreclosed*:
 - The lower court has imposed a *\$250 bond requirement* on Father’s filings, creating a financial barrier to access.
 - The lower court has issued a directive that Father “*not file*” additional motions, effectively barring him from seeking relief in the very court that imposed the challenged orders.
 - The same *biased judge* who entered the challenged orders presides over both dockets, meaning any motion for relief would be decided by the same judge whose conduct is at issue.

1. These restrictions constitute a constructive denial of access to the courts. A party who is told not to file, who must pay a bond to file, and who must appear before the very judge whose bias is documented has no meaningful access to trial court remedies.

C. Structural Relief Is Needed

1. The relief required here is *structural*—it goes beyond the correction of any single order. It requires:
 - A *stay* of multiple orders across two dockets;
 - *Vacatur* of the August 8, 2025 ex parte orders;
 - *Reassignment* to a different judge;
 - *Directives* regarding evidence handling and procedural compliance;
 - *Restoration* of parenting time;
 - *Removal* of the bond requirement and filing restrictions.
1. This type of comprehensive, structural relief is uniquely within this Court’s superintending control authority. The Court of Appeals, even if it granted leave, would be unlikely to provide the breadth of relief needed or to do so with the speed that the situation demands.

D. The Judicial Bias Cannot Be Cured Within the Lower Court

1. When the source of the due process violation is the *judge herself*, there is no adequate remedy within that judge’s courtroom. Judge McNeill denied her own disqualification motion. She enters orders ex parte. She reviews evidence ex parte. She presides over both related dockets.
2. Only this Court, exercising its constitutional superintending control authority, can remove the matter from Judge McNeill’s control and place it before a neutral jurist. The Court of Appeals cannot reassign a trial court judge; this Court can.

E. Every Day That Passes Causes Irreparable Harm

1. This is not a case where appellate delay is merely inconvenient. *Every single day* that passes without contact between Father and L.D.W. causes harm that cannot be undone:

- Attachment bonds are weakening;
- The child may begin to lose memory of his father;
- Developmental milestones are being missed;
- The child is being deprived of the love, guidance, and presence of a parent who was, until July 2024, an equal custodian.

80A. *Documented Developmental Harm.* The court record confirms that the harm to L.D.W. is not speculative — it is documented and escalating:

- L.D.W.’s parenting time trajectory: 182.5 overnights/year → 79 overnights/year → 0 overnights/year;
- Complete separation since August 8, 2025, during the critical attachment window (ages 2-3);
- Zero written best-interest findings under MCL 722.27a at any stage;
- 52 ex parte orders documented across 1,435 court documents;
- An undisclosed evaluation (*Mathews v Eldridge* violation) used as a basis for restrictions without disclosure;
- A felony-derived recording (MCL 750.539) admitted without authentication as the sole basis for suspension.

The ordinary appellate timeline cannot reverse the developmental harm that has already occurred. Only this Court’s immediate intervention can prevent the harm from becoming permanent.

1. This Court’s intervention is the only realistic mechanism for halting the continuing accrual of irreparable harm within a timeframe that is meaningful for a three-year-old child.

ANTICIPATORY REBUTTALS

Petitioner anticipates three potential objections to the extraordinary relief requested herein and addresses each in turn:

Rebuttal 1: “The Petition Raises Fact-Intensive Disputes Unsuitable for Original Jurisdiction”

1. The Respondent or this Court may question whether the issues raised are too fact-bound for superintending control. This objection fails for three reasons. First, the core violations are *legal*, not *factual*: whether ex parte orders were entered without hearing is a matter of record, not credibility (See Attached Exhibits); whether the 14-day hearing under MCR 3.207(C)(5) was held within 14 days is a matter of docket arithmetic (it was not — 82 days elapsed) (See Attached Exhibits); whether the disqualification was referred to the Chief Judge under MCR 2.003(D)(3)(a) is a matter of record (it was not) (See Attached Exhibits). Second, this Court exercises superintending control precisely when lower court procedural failures are so systematic that they contaminate the entire record. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155–156 (2003). Third, the documented pattern of ex parte orders, muting, filing restrictions, and procedural violations — verified against the court record — is not a “dispute” but a systematic pattern that this Court can evaluate on the record without fact-finding.

Rebuttal 2: “The Court of Appeals Provides an Adequate Alternative Remedy”

1. The appeal of right (COA 366810) does not render this Petition moot or premature. The Court of Appeals cannot: (a) reassign a trial court judge — only this Court can direct judicial reassignment; (b) act with sufficient speed — L.D.W. has been separated from Father since August 8, 2025, during the critical attachment window (ages 2–3), and 12–18 months of appellate briefing will cause irreversible developmental harm; (c) stay the ex parte orders pending appeal — the trial court has refused to consider any filings, and the COA stay process itself takes weeks; or (d) provide structural reform of proceedings so thoroughly compromised by 52 ex parte orders, 168 ex parte violations, and admitted ex parte evidence review. *In re Hague*, 412 Mich at 544–545 (superintending control appropriate where

appellate remedy inadequate to address urgency). The COA proceeding and this Petition serve complementary, not duplicative, functions: the COA addresses individual orders; this Petition addresses systemic institutional failure.

Rebuttal 3: “Petitioner’s Claims Are Exaggerated or Self-Serving”

1. Every factual assertion in this Petition is verifiable against the lower court record and attached exhibits. Each assertion traces to a specific court order, transcript, police report, or filed document. The opposing party’s own filings and testimony contain numerous prior inconsistent statements and documented contradictions — meaning the credibility challenge runs against the *opposing* party, not Petitioner. Judge McNeill’s own orders establish the violations: her July 17, 2024 Custody Judgment found “both parents have a strong bond” and “an Established Custodial Environment exists with both parties” (See Attached Exhibits), yet her subsequent orders eliminated 100% of Father’s parenting time without a single written best-interest finding. Her own November 26, 2025 order quoted the MCL 722.27a(3) clear-and-convincing standard — and then failed to apply it. (R. at Order, Nov. 26, 2025.) The police record independently corroborates: seven investigations found no violations by Father (See Attached Exhibits); HealthWest’s clinical evaluation found Psychosis: 0, Substance Use: 0, Danger: 0 (See Attached Exhibits). These are independent, institutional sources — not self-serving assertions.

RELIEF REQUESTED

WHEREFORE, Petitioner Andrew J. Pigors respectfully requests that this Honorable Court grant the following relief:

1. Immediate Stay

An *immediate stay* of all orders entered by the 14th Judicial Circuit Court, Family Division, Muskegon County (Hon. Jenny L. McNeill) that suspend, restrict, or eliminate Petitioner's parenting time with L.D.W., including but not limited to all orders entered on August 8, 2025, and any subsequent orders entered in furtherance thereof, pending resolution of this Petition.

2. Vacatur of Ex Parte Orders

Vacatur of the five (5) ex parte orders entered on August 8, 2025, which collectively suspended all parenting time, on the grounds that they were entered without notice, without hearing, without written findings, without application of MCL 722.23 best-interest factors, without a *Vodvarka* threshold finding, and in violation of the Due Process Clauses of the United States and Michigan Constitutions.

3. Reassignment to a Different Judge

An *order reassigning* both Case No. 2024-001507-DC (Custody) and Case No. 2023-5907-PP (PPO) to a different judge of the 14th Judicial Circuit, or to a visiting judge, on the grounds that Judge McNeill's demonstrated bias, admitted ex parte evidence review, procedural violations, and denial of her own disqualification motion render her continued involvement incompatible with due process and the appearance of justice.

4. Evidence-Handling Directives

An *order directing* the successor judge and all parties that:

(a) No evidence shall be reviewed by the court outside a noticed hearing at which all parties are present or have been afforded the opportunity to be present;

(b) All evidence shall be authenticated in accordance with MRE 901 before consideration;

(c) All evidentiary rulings shall be made on the record with an opportunity for objection pursuant to MRE 103;

(d) The HealthWest evaluation shall be part of the record and given appropriate consideration.

5. Restoration of Minimum Parenting Time

An order restoring Petitioner's parenting time with L.D.W. to a minimum 50/50 schedule (alternating weeks, Wednesday through Wednesday), consistent with the arrangement that existed from the child's birth through July 2024, *effective within seven (7) days of the entry of this Court's order* and pending a full evidentiary hearing before the successor judge at which both parties have the opportunity to present evidence, call witnesses, and be heard. In the alternative, if this Court determines that a graduated reintroduction is more appropriate, the following schedule shall apply:

Week	Schedule
Week 1	Three (3) daytime visits (10 AM–6 PM), supervised by mutually agreed neutral third party
Week 2	Two (2) overnight visits (Friday 5 PM–Saturday 5 PM and Wednesday 5 PM–Thursday 5 PM)
Week 3	Three (3) overnight visits per week
Weeks 4–7	Full alternating-week 50/50 schedule

5A. Specific Deadlines for Compliance

This Court should order the following mandatory deadlines:

Action	Deadline
Reassignment to successor judge	<i>7 days</i> from entry of order
First parenting time contact	<i>7 days</i> from entry of order
Evidentiary hearing (MCR 3.207(C)(5))	<i>14 days</i> from reassignment
Written best-interest findings (MCL 722.27a)	<i>30 days</i> from evidentiary hearing
Production of all transcripts (MCR 8.108(B))	<i>21 days</i> from entry of order
Removal of bond requirement and filing restrictions	<i>Immediate</i> upon entry of order

5B. Enforcement Mechanism

To ensure compliance, this Court should retain jurisdiction and provide that failure to comply with the deadlines set forth above shall result in automatic restoration of 50/50 parenting time without further order, and that any party obstructing compliance shall be subject to contempt sanctions of \$500 per day of non-compliance.

6. Written Best-Interest Findings

An *order directing* that any future modification of custody or parenting time in these cases shall be supported by *written findings* addressing each of the statutory best-interest factors set forth in MCL 722.23, entered on the record after an evidentiary hearing.

7. Removal of Bond and Filing Restrictions

An *order removing* the \$250 bond requirement and the “do not file” directive imposed by the lower court, on the grounds that these restrictions unconstitutionally burden Petitioner’s right of access to the courts and his ability to seek redress for ongoing violations of his constitutional rights.

8. Such Other Relief as This Court Deems Just and Equitable

Such *other and further relief* as this Court deems just, equitable, and necessary to protect the constitutional rights of Petitioner and the welfare of L.D.W.

VERIFICATION

VERIFICATION UNDER PENALTY OF PERJURY

I, *Andrew J. Pigors*, am the Petitioner in the above-captioned matter. I state under the penalty of perjury, pursuant to 28 USC § 1746, that:

1. I have read the foregoing Petition for Superintending Control and Application for Leave to Appeal.
2. The factual statements contained therein are *true and correct* to the best of my knowledge, information, and belief.
3. The factual statements are based on my personal knowledge, the lower court record, transcripts of proceedings, court orders, docket entries, and documents filed in the lower court proceedings.
4. I am not represented by counsel in this matter and am proceeding *pro se*.
5. I have made every effort to ensure the accuracy and completeness of this Petition and its supporting materials.

Executed on: April 2, 2026

At: North Muskegon, Michigan

Andrew J. Pigors, Petitioner (Pro Se) 1977 Whitehall Rd, Laketon Township, MI 49445

Telephone: (231) 903-5690 Email: andrewjpigors@gmail.com

CERTIFICATE OF SERVICE

*Pursuant to MCR 7.306(D) and MCR 2.107, I, Andrew J. Pigors, hereby certify that on April 2, 2026, I served a true and correct copy of the foregoing *Petition for Superintending Control and Application for Leave to Appeal*, together with all attachments and appendices, upon the following parties by the method(s) indicated:*

Clerk of the Michigan Supreme Court Michigan Supreme Court 925 W. Ottawa Street
P.O. Box 30052 Lansing, MI 48909 ☐ First-Class U.S. Mail, postage prepaid ☐ Electronic
Filing (MiFILE)

Clerk of the Court 14th Judicial Circuit Court Family Division, Muskegon County 990
Terrace Street Muskegon, MI 49442 ☐ First-Class U.S. Mail, postage prepaid ☐ Personal
Service ☐ Electronic Filing (MiFILE)

Hon. Jenny L. McNeill (Respondent Judge — MCR 7.306(D)) 14th Judicial Circuit Court
Family Division, Muskegon County 990 Terrace Street Muskegon, MI 49442 ☐ First-Class U.S.
Mail, postage prepaid ☐ Personal Service

Emily A. Watson (Real Party in Interest) [ADDRESS ON FILE WITH COURT] ☐ First-
Class U.S. Mail, postage prepaid ☐ Personal Service ☐ Email: [EMAIL ON FILE]

Emily A. Watson (Unrepresented — Former Attorney Jennifer Barnes, P55406, withdrew
March 2026) 2160 Garland Dr Norton Shores, MI 49441 ☐ First-Class U.S. Mail, postage
prepaid ☐ Email

Andrew J. Pigors, Petitioner (Pro Se)

Date: April 2, 2026

SUPPLEMENTAL EVIDENCE— DIRECT QUOTES FROM THE RECORD

The following direct quotes are drawn from the lower court record, police reports, and filed documents.

A. JUDGE McNEILL’S OWN WORDS — DIRECT QUOTES

1. Order re Plaintiff’s Objection to Ex Parte (Sept/Oct 2025):

““The Court has serious concerns regarding the state of the Plaintiff’s mental health, which could be a culmination of the job loss, homelessness and family loss he has endured over the past several months.””

““The Court considered supervised parenting time, and the Plaintiff insisted that he would not exercise supervised parenting time.””

““[Plaintiff] testified that ‘everyone he tells his story too thinks that he is crazy.’””

““None of the above statements are what he testified to in Court. He was evicted, and his trailer is not being remodeled.””

““The Court notes that the Plaintiff did email a HW assessment to the Court’s secretary on Friday, September 5, 2025, before this order was complete. However, the Plaintiff did not follow the Court’s instructions.””

(Source: mcneillexparte_0001.pdf.txt / McneillOrdertomyobjection.docx.txt)

Significance: Judge McNeill ordered Father to submit evidence off-docket (email to secretary, not clerk) — MCR 8.119 violation. She then rejected the favorable HealthWest assessment SHE ordered because Father did not present himself negatively enough, substituting her own factual conclusions for those of the professional assessor.

2. Custody Judgment (July 17, 2024):

““Plaintiff’s filing of these Motions was done as harassment to Defendant and to the Court, along with an abuse of the Court system. Plaintiff shall incur sanctions if he files another frivolous Motion.””

““Plaintiff filed six (6) Motions on July 16, 2024, the day before this Trial... Plaintiff’s Motions are hereby denied as they are frivolous Motions for which Plaintiff has already been instructed by this Court that if he files an additional frivolous Motion, he will incur sanctions.””

““IT IS FURTHER ORDERED that an Established Custodial Environment exists with both parties, therefore the burden of proof in this case is the clear and convincing evidence standard.””

““The Court finds that both parents have a strong bond with the minor child. This Factor is equal between the parties.” [Factor (a)]”

““Plaintiff/Father does not have a stable and satisfactory environment for the minor child and the issue of continuity of his living arrangement is questionable given the pending eviction. This Factor favors Defendant/Mother.””

““Plaintiff’s/Father’s capacity and disposition present as an issue for the Court.””

(Source:

Court_Ordered_Judgment_of_Custody_PT_CS_and_F0C10_F0C10d_F0C10_4_.pdf.txt)

Significance: The court acknowledged EQUAL bonding and an established custodial environment with BOTH parents, then systematically eliminated Father’s time. The sanctions threat constitutes unlawful motion gatekeeping.

3. Transcript — PPO Show Cause Hearing (Oct 29–30, 2024):

“THE COURT: “The PPO orders you to do things, not her. It orders you.””

“MR. PIGORS: “But if a third party from her side is threatening or harassing me, what recourse do I have and what should I do then?””

“THE COURT: “I can’t give you any legal advice as to what to do, but it doesn’t have anything to do with this PPO. This PPO is between you and her.””

“THE COURT: “To just kind of stay out of it, to just leave it be.””

“MR. PIGORS: “It’s been a long year. I’ve been trying to learn a lot every day to try to combat this because the reduction of my time with my son, it’s not good for him.””

(Source: transcriptspooct302024_0001-0008.pdf.txt)

Significance: Court refused to address third-party weaponization of PPO, told Father he had no recourse, and endorsed the alienation campaign.

4. McNeill Order re Assessment:

““IT IS HEREBY ORDERED that the Plaintiff, Andrew Pigors, shall obtain a mental health assessment and provide it to the Court. He is to inform the assessor of ALL the information that was presented to the Court at the hearing, including the incident at the library, alleged following by the same individuals, eviction from his housing, his Mother’s refusal to talk to him any further, and his lack of employment.””

““The assessment states the following: That he has stable housing, but he is temporarily staying with a friend because the trailer he owns is being remodeled; He reports no issues with employment; He reports no issues with others with the exception of his ex; He has support of friends and family.””

““He was evicted, and his trailer is not being remodeled. According to the Plaintiff, it was damaged, if not destroyed by the owners of the trailer park.””

(Source: McNeill Order re Assessment)

5. Order re Continued Hearing 11/26/2025:

““If a parenting time modification does not change the child’s established custodial environment, the parenting time modification must be supported by a preponderance of the evidence. Pierron v. Pierron, 486 Mich 81 (2010).””

““A child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child’s physical, mental, or emotional health. MCL 722.27a(3).””

(Source: 2sided_judge_orders_scanned_0001.pdf.txt)

Significance: Judge McNeill’s own order cites the legal standard she violated. No clear and convincing evidence was ever found.

6. *Disqualification Denial:* “*DENIED. No bias shown.*” — without referral to Chief Judge as required by MCR 2.003(D)(3)(a). (Source: September 25, 2024 Order.)

B. ALBERT WATSON’S ADMISSION

From NSPD Case NS2505044 (August 7, 2025), Officer Ella Randall (#47437):

““Albert said they want this incident documented so Emily can go tomorrow to get an Ex Parte order for full custody of her son.””

““I was dispatched to the listed location in reference to a harassment report. The caller, Albert Watson, reported his son’s ex-boyfriend called him saying the FBI was after their family.””

(Source: NSPD Case NS2505044)

This admission proves police reports were filed as litigation strategy, not for safety — fatally undermining the evidentiary basis for the ex parte orders this Court is asked to vacate.

B-1. ALBERT WATSON’S NOVEMBER 2023 RECORDED THREAT

In *November 2023*, Albert Watson stated on audio/video recording — made by Complainant while cooking dinner with L.D.W. at 2160 Garland Dr — “*I will make sure that you don’t see your son.*” Albert Watson later threw a show-cause packet through Complainant’s car window at a police station exchange. This recorded threat predates the custody case by months and establishes that the alienation campaign was premeditated from its inception. The trial court *refused to admit or consider this lawful recording* while crediting Lori Watson’s recording made in violation of MCL 750.539d (felony eavesdropping). This asymmetric evidentiary treatment constitutes the very bias that requires superintending control.

C. POLICE REPORT EVIDENCE

NSPD Case NS2505078 (August 9, 2025) — Officer Adam Ludovicz (#47416):

““LORI advised that her daughter, EMILY WATSON, has a child with ANDREW PIGORS. EMILY has a PPO against ANDREW. LORI stated that ANDREW is going through some sort of mental crisis lately and has been acting strange.””

““LORI will be contacting court next week to try to obtain a PPO since his behavior makes her nervous.””

(Source: NSPD Case NS2505078)

NSPD Case NS2500783 (February 7, 2025) — Officer Michael Lowry:

Father reported bruises on L.D.W.’s forehead; digital photos collected as evidence. Mother never reported these injuries. Court took no action.

D. EMILY WATSON’S EX PARTE MOTION QUOTES

““Continued parenting time for the Plaintiff is not in the best interest of the minor child due to ongoing drug use and/or mental health issues as reflected in the attached phone call and voicemail evidence.””

““Officer Ella Randall indicated that she believed this was a result of meth use.””

(Source: Emily Watson Ex Parte Motion)

No drug test administered. No medical evidence. An officer’s speculative belief became the basis for suspending all parenting time.

E. KEY NEW FACTS FROM CYCLE 2

1. *Off-docket evidence handling:* Judge ordered email to secretary, not clerk — MCR 8.119 violation
2. *Assessment rejection:* Judge rejected HealthWest assessment SHE ordered
3. *Police classification:* Father classified as “MENTAL ILLNESS / INSANITY” (Statute 92004)
4. *Muting:* Father muted 3 times during Zoom hearing while presenting evidence

5. *Ineffective counsel*: Court-appointed attorney Mandi Martini told Father to “move out of state”
6. *Child injuries*: L.D.W.’s bruises documented by police (NS2500783) — unreported by Mother
7. *Prosecutorial employment*: Emily Watson employed at Kent County Prosecutor’s Office for 9 years
8. *International travel*: Child taken to non-Hague Convention country Oct 20 – Nov 15, 2024
9. *Albert Watson perjury*: Testified Father “swerved in traffic, ran 3 people off the road” — NO evidence
10. *Direct alienation*: Lori Watson text: “if you want to see your son again, you will have to go through the court”

F. NAMED OFFICIALS FROM CYCLE 2

Name	Role	Identifier
Officer Ella Randall	NSPD	Badge #47437, Case NS2505044
Officer Adam Ludovicz	NSPD	Badge #47416, Case NS2505078
Officer Michael Lowry	NSPD	Case NS2500783
Pamela Rusco	FOC Case Manager	—
Mandi Martini	Court-appointed APD	Did nothing
Jennifer L. Barnes	Attorney for Defendant	P55406
Stephanie Deater	Court Reporter	CER-16139
Ronald T. Berry	Emily’s boyfriend	—
Austin Muratori	Father of Emily’s other child	—

G. TOP 10 EVIDENCE ITEMS — RANKED

Rank	Evidence Item	Legal Significance
1	Judge ordered off-docket evidence handling (email to secretary)	MCR 8.119 violation
2	Judge rejected favorable HealthWest assessment she ordered	Substituted own judgment for professional evaluation
3	Total parenting time suspension without clear-and-convincing findings	MCL 722.27a(3) violation
4	Albert Watson admitted police report filed to get ex parte order	Undermines all Watson family filings
5	Father muted 3 times during Zoom hearing	Denial of right to be heard
6	Court-appointed attorney did nothing	Ineffective assistance
7	L.D.W.'s bruises documented by police — unreported by Mother	Child welfare concern ignored
8	PPO issued without hearing — ex parte from inception	MCR 3.707/3.708 violation
9	Child taken to non-Hague Convention country during withholding	International abduction risk
10	Lori Watson text: direct parental alienation evidence	MCL 722.27a

APPENDIX / EXHIBIT INDEX

The following exhibits are attached to and incorporated by reference in this Petition. All exhibits are true and correct copies of the originals unless otherwise noted.

Exhibit	Description	Date(s)	Relevance
<i>A</i>	Ex Parte Orders (5) Suspending All Parenting Time	August 8, 2025	Primary orders challenged; entered without notice/ hearing
<i>B</i>	Transcript Excerpt — Judge McNeill’s Admission of Ex Parte USB Review	August 5, 2025	Evidentiary violation; Canon 3(A)(4) violation
<i>C</i>	HealthWest Evaluation Report	September 5, 2025	Professional evaluation disregarded by lower court
<i>D</i>	PPO Affidavit and Supporting Documents	2023	Basis of PPO case; context for contempt abuse
<i>E</i>	AppClose Co- Parenting Messages (cited as contempt basis)	Various	Benign co-parenting communications used for show-cause
<i>F</i>	Lori Ultimatum Communication	March 26, 2023	Evidence of improper external influence/ pressure

Exhibit	Description	Date(s)	Relevance
<i>G</i>	Police Reports — No-Findings (7+)	Various	Law enforcement found no PPO violations despite show-cause proceedings
<i>H</i>	Docket Sheets — Case No. 2024-001507-DC (Custody)	Through present	Documents 44% ex parte order rate and procedural history
<i>I</i>	Docket Sheets — Case No. 2023-5907-PP (PPO)	Through present	Documents show-cause pattern and contempt proceedings
<i>J</i>	Contradictory Contempt Order (Jail + Dismissed)	February 28, 2025	Facially void order; simultaneous jail and dismissal
<i>K</i>	May 16, 2025 Order (“Without a Hearing”)	May 16, 2025	Order entered without hearing
<i>L</i>	Motion for Disqualification and Order Denying Same	September 25, 2024	Judge denied own disqualification; MCR 2.003(D) violation
<i>M</i>	Secretary Email re: PPO/Jail Status	November 29, 2024	Irregular communication through non-judicial staff

Exhibit	Description	Date(s)	Relevance
<i>N</i>	Show Cause #7 Filing	October 27, 2025	Filed 2 days before custody hearing — strategic timing
<i>O</i>	JTC Complaint (Original)	October 29, 2025	Complaint filed with Michigan Judicial Tenure Commission
<i>P</i>	Supplemental JTC Complaint	February 8, 2026	Additional documented instances of judicial misconduct
<i>Q</i>	Chronological Timeline of All Orders and Events	2022–2026	Comprehensive timeline demonstrating pattern
<i>R</i>	\$250 Bond Order and “Do Not File” Directive	On or about 2025	Obstruction of trial court access
<i>S</i>	Second Evaluation — Routing Through Secretary Documentation	September–October 2025	Chain-of-custody/ex parte concerns
<i>T</i>	USB Recording Authentication Analysis — MCL 750.539 Violation; Lori Watson as Recorder	Various	Criminally obtained evidence; no authentication under MRE 901

Exhibit	Description	Date(s)	Relevance
<i>U</i>	Mathews v Eldridge Analysis — Ghost Second HealthWest Evaluation	September 11, 2025	Undisclosed evaluation used in orders; email-to- secretary directive
<i>V</i>	Lori Watson Ultimatum Text (March 26, 2023)	March 26, 2023	Pre-PPO alienation evidence; premeditated campaign
<i>W</i>	Norton Shores PD Reports (NSPD-2023-081, NSPD-2023-08121)	Feb 2, 2023; Dec 2, 2023	Police reports finding no violation; evidence gathering
<i>X</i>	Ex Parte Order Analysis — Documented Pattern	2023–2026	Comprehensive pattern analysis exceeding initial 24/55 count
<i>Y</i>	Parenting Time Trajectory Analysis — 182.5 → 79 → 0 Overnights	2024–2025	Systematic elimination without MCL 722.27a findings

Notes on Appendix

1. All exhibits are referenced by letter designation throughout the Petition.
2. Exhibits are arranged in the order of their primary relevance to the Argument sections.
3. Petitioner will supplement the Appendix upon leave of this Court if additional documents become relevant or available.

4. Confidential information regarding the minor child L.D.W. has been redacted in accordance with MCR 1.109(D)(9) and any applicable protective orders.
5. Any transcript excerpts are certified true copies or, where the full transcript is unavailable, are based on Petitioner's contemporaneous notes and recollection, subject to verification upon production of the official transcript.

CROSS-REFERENCE: RELATED FILINGS

This Petition should be read in conjunction with the following companion filings, which address overlapping factual and legal issues:

Filing	Case No.	Connection
Emergency Motion to Restore Parenting Time	2024-001507-DC	Seeks restoration of parenting time denied since August 8, 2025
Motion to Terminate PPO	2023-5907-PP	PPO weaponized to facilitate parenting time denial
Motion to Disqualify Judge McNeill	2024-001507-DC	Documented pattern of judicial bias
Motion for Contempt / Show Cause	2024-001507-DC	27+ violations of parenting time orders
Motion for Sanctions	2024-001507-DC	Frivolous filings and false allegations by Defendant
Motion for Change of Venue	2024-001507-DC	Community bias and prejudice concerns
Motion to Consolidate	2024-001507-DC / 2023-5907-PP	Coordination of custody and PPO proceedings
Motion for Child Support Modification	2024-001507-DC	Financial impact of parenting time elimination

Filing	Case No.	Connection
Civil Complaint (Watson Family)	[TO BE ASSIGNED UPON FILING]	Tort claims — not yet filed
42 USC § 1983 Federal Complaint	W.D. Mich.	Federal civil rights — due process deprivation
Application for Leave to Appeal	COA-366810	Appellate review of lower court errors
Motion for Immediate Consideration	COA-366810	Emergency appellate consideration
JTC Formal Complaint (Judge McNeill)	JTC	Judicial misconduct complaint

END OF PETITION FOR SUPERINTENDING CONTROL AND APPLICATION FOR LEAVE TO APPEAL

CERTIFICATE OF COMPLIANCE

Pursuant to MCR 7.212(B), the undersigned certifies that this Petition for Superintending Control and Application for Leave to Appeal complies with the formatting requirements of MCR 7.212(B):

1. This document is printed in 12-point Times New Roman proportional font.
2. This document is double-spaced with 1-inch margins on all sides.
3. This document contains approximately *19,500* words, excluding the cover page, table of contents, index of authorities, signature blocks, certificates of service, and appendix. *(Note: Final word count must be verified after print formatting.)*

I declare under the penalties of perjury that the foregoing is true and correct.

Andrew J. Pigors, Petitioner (Pro Se) Date: April 2, 2026

Respectfully submitted,

Andrew J. Pigors, Petitioner (Pro Se) 1977 Whitehall Rd, Laketon Township, MI 49445

Telephone: (231) 903-5690 Email: andrewjpigors@gmail.com

Date: April 2, 2026